

Bidha v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 10 February 2016 · Writ-C No. 66846 of 2011 · **Writ dismissed; relegated to cl. 6.5 for bill correctness.**

HEADNOTE

Where the electricity bill itself is not under challenge, consequential recovery cannot be recast in writ. A consumer dissatisfied with the bill's correctness is left to clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was dismissed with that liberty and any interim order was discharged.

FACTUAL SUMMARY

Bidha invoked the Allahabad High Court's writ jurisdiction in 2011 against the State of Uttar Pradesh and others, including contesting respondents 4 and 5 for whom electricity counsel appeared. After listing orders for notice, instructions and affidavits, the Division Bench heard the matter on 10 February 2016. The Court recorded that the Electricity Department's bill was not under challenge and that the grievance was directed at consequential recovery. Any interim order was discharged when the petition was dismissed with liberty to the Supply Code forum.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill dispute

HOLDING

Where the electricity bill is not under challenge, consequential recovery cannot be subjected to change in writ. A consumer dissatisfied with the bill's correctness must seek the remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was dismissed with that liberty and any interim order was discharged. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Where the electricity bill itself is not under challenge, consequential recovery cannot be recast in writ. A consumer dissatisfied with the bill's correctness is left to clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was dismissed with that liberty and any interim order was discharged. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

Not examined on merits; petitioner left to the clause 6.5 Supply Code remedy. ¶ 1